

**Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO**

INTRODUCED

LLS NO. 26-0628.01 Craig Harper x3481

HOUSE BILL 26-1152

HOUSE SPONSORSHIP

Sirota, Brown, Taggart

SENATE SPONSORSHIP

Bridges, Amabile, Kirkmeyer

House Committees

Appropriations

Senate Committees

A BILL FOR AN ACT

101 **CONCERNING A SUPPLEMENTAL APPROPRIATION TO THE DEPARTMENT**
102 **OF EARLY CHILDHOOD.**

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

Supplemental appropriations are made to the department of early childhood.

1 *Be it enacted by the General Assembly of the State of Colorado:*

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

1 **SECTION 1. Appropriation to the department of early**
2 **childhood for the fiscal year beginning July 1, 2025.** In Session Laws
3 of Colorado 2025, section 2 of chapter 476, (SB 25-206), **amend** Part III
4 as follows:

5 Section 2. **Appropriation.**

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	PART III						
2	DEPARTMENT OF EARLY CHILDHOOD						
3							
4	(1) EXECUTIVE DIRECTOR'S OFFICE						
5	(A) General Administration						
6	Personal Services	8,320,096					
7		(77.8 FTE)					
8	Health, Life, and Dental	4,321,929					
9		4,013,539					
10	Short-term Disability	17,153					
11	Paid Family and Medical						
12	Leave Insurance	110,267					
13	Unfunded Liability						
14	Amortization Equalization						
15	Disbursement Payments	2,450,376					

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Salary Survey	673,166					
2	Step Pay	103,887					
3	PERA Direct Distribution	434,604					
4	Shift Differential	81					
5	Workers' Compensation	66,300					
6	Operating Expenses	846,987					
7	Legal Services	1,431,001					
8	Administrative Law Judge						
9	Services	2,822					
10	Payment to Risk						
11	Management and Property						
12	Funds	4,303					
13	Vehicle Lease Payments	8,026					
14		6,910					
15	Capital Outlay	126,730					

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Leased Space	332,520					
2	Statewide Indirect Cost						
3	Assessment	176,389					
4		<u>19,426,637</u>	8,020,520		1,832,654 ^a	8,045,430 ^b	1,528,033 ^c
5		19,117,131	7,799,193		1,784,617 ^a	8,040,248 ^b	1,493,073 ^c
6							
7	^a Of this amount, \$357,209 \$349,000 shall be from the Preschool Programs Cash Fund created in Section 26.5-4-209 (1)(a), C.R.S., \$180,280 \$175,598 shall be from the Nurse Home						
8	Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., \$97,401(I) shall be from the Early Intervention Services Trust Fund created in Section 26.5-3-409 (2)(a), C.R.S.,						
9	\$61,362 \$59,915 shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S., and \$1,136,402 \$1,102,703 shall be from various cash fund sources. The Early						
10	Intervention Services Trust Fund amount is shown for informational purposes only as this fund is not subject to appropriation by the General Assembly and the amount is exempt from						
11	the restrictions on state spending imposed by Section 20 of Article X of the State Constitution pursuant to Section 26.5-3-409 (2)(a), C.R.S.						
12	^b Of this amount, \$176,389 shall be from statewide indirect cost recoveries, \$7,869,041 \$7,863,859 shall be from departmental indirect cost recoveries or the Indirect Costs Excess						
13	Recovery Fund created in Section 24-75-1401 (2), C.R.S.						
14	^c Of this amount, \$1,527,695 \$1,492,735 shall be from Child Care Development Funds and \$338 reflects funds anticipated to be received pursuant to Part C of the federal Individuals						
15	with Disabilities Education Act.						

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1							
2	(B) Information Technology Systems						
3	Information Technology						
4	Contracts and Equipment	11,792,150	7,852,664		3,260,000 ^a		679,486 ^b
5	Information Technology						
6	Systems Managed by Other						
7	Departments	571,796	66,622				505,174 ^b
8	Payments to OIT	14,906,899	12,285,052			2,621,847^e	
9		14,751,986	12,157,388			2,594,598 ^c	
10	CORE Operations	21,441	21,441				
11	Child Care Automated						
12	Tracking System	4,414,382	504,449				3,909,933 ^b
13		<u>31,706,668</u>					
14		31,551,755					
15							

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^a This amount shall be from the Preschool Program Cash Fund created in Section 26.5-4-209 (1)(a), C.R.S.						
2	^b These amounts shall be from Child Care Development Funds.						
3	^c Of this amount, \$2,212,137 \$2,189,146 shall be from departmental indirect cost recoveries or the Indirect Costs Excess Recovery Fund created in Section 24-75-1401 (2), C.R.S.,						
4	and \$409,710 \$405,452 shall be from transfers from the Department of State.						
5							
6		51,133,305					
7		50,668,886					
8							
9	(2) PARTNERSHIPS AND COLLABORATIONS⁹						
10	Personal Services	852,058	286,380				565,678 ^a
11	(6.5 FTE)						
12	Operating Expenses	182,766	45,846				136,920 ^a
13	Local Coordinating						
14	Organizations	4,521,570			4,521,570 ^b		
15	Early Childhood Councils	4,414,452	1,000,000				3,414,452 ^a

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Child Care Resource and						
2	Referrals	663,835					663,835^a
3		633,835					633,835 ^a
4	Family Resource Centers	1,545,654	1,545,654				
5	Indirect Cost Assessment	<u>386,287</u>					386,287 ^a
6		12,566,622					
7		12,536,622					
8							
9	^a These amounts shall be from Child Care Development Funds.						
10	^b This amount shall be from the Preschool Program Cash Fund created in Section 26.5-4-209 (1)(a), C.R.S.						
11							
12	(3) EARLY LEARNING ACCESS AND QUALITY⁹						
13	Personal Services	8,855,201	3,044,800		993,476 ^a		4,816,925 ^b
14		(61.0 FTE)					
15	Operating Expenses	245,326	19,022		18,430 ^a		207,874 ^b

			APPROPRIATION FROM					
		ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
		\$	\$	\$	\$	\$	\$	\$
1	Universal Preschool Program	349,096,944		146,333,200		202,763,744*		
2		359,096,944				212,763,744 ^a		
3	Child Care Assistance							
4	Program	185,700,444		37,058,921		20,296,012(I) ^c		128,345,511 ^d
5	Intrastate Child Care							
6	Assistance Program							
7	Redistribution	500,000						500,000 ^b
8	Workforce Recruitment and							
9	Retention Grants	1,128,167						1,128,167^b
10		978,167						978,167 ^b
11	Professional Development							
12	and Training	2,425,317		75,000				2,350,317^b
13		2,345,317						2,270,317 ^b

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Early Childhood Quality and						
2	Availability	10,490,649	3,043,243				7,447,406^b
3		10,240,649					7,197,406 ^b
4	Imagination Library of						
5	Colorado	1,624,365	1,624,365				
6	Indirect Cost Assessment	<u>4,931,423</u>					4,931,423 ^b
7		564,997,836					
8		574,517,836					

10 ^a These amounts shall be from the Preschool Programs Cash Fund created in Section 26.5-4-209 (1)(a), C.R.S.

11 ^b These amounts shall be from Child Care Development Funds.

12 ^c This amount shall be from local funds and reflects the local share of the costs of administering the Child Care Assistance Program and the local share of child care subsidies. The (L)
13 notation and the (I) notation apply to this amount.

14 ^d Of this amount, \$128,245,511 shall be from Child Care Development Funds and \$100,000 shall be from the Title XX Social Services Block Grant.

15

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	(4) COMMUNITY AND FAMILY SUPPORT⁹						
2	Personal Services	4,389,273	2,041,221		489,586 ^a		1,858,466 ^b
3	(23.8 FTE)						
4	Operating Expenses	329,641	185,233		52,188 ^c		92,220 ^d
5	Early Intervention	99,946,707	76,986,834		10,987,177(I) ^e	5,940,111 ^f	6,032,585(I) ^g
6		92,604,480	69,644,607				
7	Home Visiting	29,791,933	628,226		27,400,370 ^h		1,763,337(I) ⁱ
8	Child Maltreatment						
9	Prevention	14,697,067	8,350,453		2,208,216 ^j		4,138,398(I) ^k
10	Early Childhood Mental						
11	Health Services	3,689,262	1,627,813				2,061,449 ^l
12	Social-Emotional Learning						
13	Programs Grants	817,289			817,289 ^m		

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Child Care Services and						
2	Substance Use Disorder						
3	Treatment Pilot Program	500,000	500,000				
4	Universal Home Visiting						
5	Pilot Program	2,528,842	2,528,842				
6	(1.0 FTE)						
7	Indirect Cost Assessment	1,000,976			308,754 ^a		692,222 ^o
8		<u>157,690,990</u>					
9		150,348,763					

10

11 ^a Of this amount, \$243,219 shall be from the Nurse Home Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., \$126,043 shall be from the Colorado Child Abuse
12 Prevention Trust Fund created in Section 26.5-3-206 (1), C.R.S., \$110,154 shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S., and \$10,170(I) shall
13 be from the Early Intervention Services Trust Fund created in Section 26.5-3-409 (2)(a), C.R.S. The Early Intervention Services Trust Fund amount is shown for informational purposes
14 only as this fund is not subject to appropriation by the General Assembly and the amount is exempt from the restrictions on state spending imposed by Section 20 of Article X of the
15 State Constitution pursuant to Section 26.5-3-409 (2)(a), C.R.S.

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^b Of this amount, \$1,515,563(I) reflects funds anticipated to be received pursuant to Part C of the federal Individuals with Disabilities Education Act, \$182,256 shall be from Child Care						
2	Development Funds, \$95,779(I) reflects funds anticipated to be received pursuant to Title IV-B, Subpart 2, of the Social Security Act, and \$64,868(I) reflects funds anticipated to be						
3	received pursuant to the Community-based Child Abuse Prevention Grant fund.						
4	^c Of this amount, \$29,084 shall be from the Nurse Home Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., \$20,254 shall be from the Marijuana Tax Cash Fund created						
5	in Section 39-28.8-501 (1), C.R.S., and \$2,850 shall be from the Colorado Child Abuse Prevention Trust Fund created in Section 26.5-3-206 (1), C.R.S.						
6	^d Of this amount, \$33,202 shall be from Child Care Development Funds, \$32,944(I) reflects funds anticipated to be received pursuant to Part C of the federal Individuals with Disabilities						
7	Education Act, \$21,024(I) reflects funds anticipated to be received pursuant to Title IV-B, Subpart 2, of the Social Security Act, and \$5,050(I) reflects funds anticipated to be received						
8	pursuant to the Community-based Child Abuse Prevention Grant fund.						
9	^e This amount shall be from the Early Intervention Services Trust Fund created in Section 26.5-3-409 (2)(a), C.R.S. The Early Intervention Services Trust Fund amount is shown for						
10	informational purposes only as this fund is not subject to appropriation by the General Assembly and the amount is exempt from the restrictions on state spending imposed by Section						
11	20 of Article X of the State Constitution pursuant to Section 26.5-3-409 (2)(a), C.R.S.						
12	^f This amount shall be from Medicaid funds transferred from the Department of Health Care Policy and Financing.						
13	^g This amount reflects funds anticipated to be received pursuant to Part C of the federal Individuals with Disabilities Education Act.						
14	^h This amount shall be from the Nurse Home Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., which is received as a damage award and, as such, does not constitute						
15	fiscal year spending for the purposes of Section 20 of Article X of the State Constitution.						
16	ⁱ This amount shall be from the Maternal, Infant and Early Childhood Home Visiting Grant program.						

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^j Of this amount, \$1,074,400(I)(L) shall be from local funds and \$1,133,816 shall be from the Colorado Child Abuse Prevention Trust Fund created in Section 26.5-3-206 (1), C.R.S.						
2	^k Of this amount, \$3,390,000(I) reflects funds anticipated to be received pursuant to Title IV-B, Subpart 2, of the Social Security Act, and \$748,398(I) reflects funds anticipated to be						
3	received pursuant to the Community-based Child Abuse Prevention Grant fund.						
4	^l This amount shall be from Child Care Development Funds.						
5	^m This amount shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S.						
6	ⁿ Of this amount, \$204,077 shall be from the Nurse Home Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., and \$104,677 shall be from various sources of cash funds.						
7	The Nurse Home Visitor Program Fund created in Section 26.5-3-507 (2)(c)(I), C.R.S., is received as a damage award and, as such, does not constitute fiscal year spending for the						
8	purposes of Section 20 of Article X of the State Constitution.						
9	^o Of this amount, \$237,687 shall be from Child Care Development Funds and \$454,535(I) shall be from various sources of federal funds.						
10							
11							
12	(5) LICENSING AND ADMINISTRATION⁹						
13	Personal Services	10,798,873	2,850,540		1,283,751 ^a		6,664,582 ^b
14	(64.3 FTE)						
15	Operating Expenses	505,950	49,366		271,615 ^c		184,969 ^d

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1 Background Investigation							
2 Unit	1,261,344				1,261,344 ^e		
3 (8.7 FTE)							
4 Indirect Cost Assessment	3,936,660				317,720 ^f		3,618,940 ^b
5		16,502,827					
6							

7 ^a Of this amount, \$1,273,751 shall be from the Child Care Licensing Cash Fund created in Section 26.5-5-311 (4), C.R.S. and \$10,000(I) shall be from the Child Care Cash Fund created
8 in Section 26.5-5-323 (4), C.R.S. The Child Care Cash Fund amount is shown for informational purposes as it is continuously appropriated for activities related to the improvement of
9 the quality of child care in Colorado, pursuant to Section 26.5-5-323 (4), C.R.S.

10 ^b These amounts shall be from Child Care Development Funds.

11 ^c This amount shall be from the Child Care Licensing Cash Fund created in Section 26.5-5-311 (4), C.R.S.

12 ^d Of this amount, \$150,000(I) shall be from Title IV-E of the Social Security Act, and \$34,969 shall be from Child Care Development Funds. The amount from Title IV-E of the Social
13 Security Act is reflected pursuant to Section 26-1-111 (2)(d)(II)(B), C.R.S., and shall be used in determining the amount to be deposited to the Excess Federal Title IV-E Reimbursements
14 Cash Fund pursuant to Section 26-1-111 (2)(d)(II)(C), C.R.S.

15 ^e Of this amount, \$970,811 shall be from the Records and Reports Fund created in Section 19-1-307 (2.5)(b), C.R.S. and \$290,533 shall be from the Child Care Licensing Cash Fund
16 created in Section 26.5-5-311 (4), C.R.S.

		APPROPRIATION FROM					
ITEM & SUBTOTAL		TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
\$		\$	\$	\$	\$	\$	\$
1	f This amount shall be from various sources of cash funds.						
2							
3							
4	TOTALS PART III						
5	(EARLY CHILDHOOD)	\$802,891,580	\$318,575,707		\$279,083,896*	\$16,607,388	\$188,624,589b
6		\$804,574,934	\$310,884,489		\$289,035,859a	\$16,574,957	\$188,079,629b

8 ^a Of this amount, \$32,475,160 contains an (I) notation and is included for informational purposes only.

9 ^b Of this amount, \$14,274,421 contains an (I) notation and is included for informational purposes only.

11 **FOOTNOTES** -- The following statements are referenced to the numbered footnotes throughout section 2.

13 9 Department of Early Childhood, Partnerships and Collaboration; Early Learning Access and Quality; Community and Family Support; Licensing and
14 Administration -- In addition to the transfer authority provided in Section 24-75-108, C.R.S., the Department of Early Childhood may transfer up to 5.0 percent
15 of the total amount appropriated to the indirect cost assessment line items in these divisions among the indirect cost assessment line items in these divisions.

1 **SECTION 2. Safety clause.** The general assembly finds,
2 determines, and declares that this act is necessary for the immediate
3 preservation of the public peace, health, or safety or for appropriations for
4 the support and maintenance of the departments of the state and state
5 institutions.